

SENATE BILL 1652

By Gardenhire

AN ACT to amend Tennessee Code Annotated, Title 39;
Title 43 and Title 57, relative to hemp.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 43-27-101(3), is amended by deleting the subdivision and substituting:

(3) "Hemp":

(A) Means the plant *Cannabis sativa* L. and any part of that plant, including the seeds thereof and all derivatives, extracts, cannabinoids, isomers, acids, salts, and salts of isomers, whether growing or not, with a total tetrahydrocannabinols concentration, including tetrahydrocannabinolic acid, of not more than three-tenths of one percent (0.3%) on a dry weight basis;

(B) Includes industrial hemp; and

(C) Does not include:

(i) Any viable seeds from a *Cannabis sativa* L. plant that exceeds a total tetrahydrocannabinols concentration, including tetrahydrocannabinolic acid, of three-tenths of one percent (0.3%) in the plant on a dry weight basis;

(ii) Any intermediate hemp-derived cannabinoid products containing:

(a) Cannabinoids that are not capable of being naturally produced by a *Cannabis sativa* L. plant;

(b) Cannabinoids that:

(1) Are capable of being naturally produced by a Cannabis sativa L. plant; and

(2) Were synthesized or manufactured outside the plant; or

(c) More than three-tenths of one percent (0.3%)

combined total of:

(1) Total tetrahydrocannabinols, including tetrahydrocannabinolic acid; and

(2) Any other cannabinoids that have similar effects, or are marketed to have similar effects, on humans or animals as a tetrahydrocannabinol, as determined by the United States secretary of health and human services;

(iii) Any intermediate hemp-derived cannabinoid products which are marketed or sold as a final product or directly to an end consumer for personal or household use; or

(iv) Any final hemp-derived cannabinoid products containing:

(a) Cannabinoids that are not capable of being naturally produced by a Cannabis sativa L. plant;

(b) Cannabinoids that:

(1) Are capable of being naturally produced by a Cannabis sativa L. plant; and

(2) Were synthesized or manufactured outside the plant; or

(c) Greater than four-tenths milligrams (0.4 mg) combined total per container of:

- (1) Total tetrahydrocannabinols, including tetrahydrocannabinolic acid; and
- (2) Any other cannabinoids that have similar effects, or are marketed to have similar effects, on humans or animals as a tetrahydrocannabinol, as determined by the United States secretary of health and human services;

SECTION 2. Tennessee Code Annotated, Section 43-27-101, is amended by adding the following new subdivisions:

() "Container":

(A) Means the innermost wrapping, packaging, or vessel in direct contact with a final hemp-derived cannabinoid product in which the final hemp-derived cannabinoid product is enclosed for retail sale to consumers, such as a jar, bottle, bag, box, packet, can, carton, or cartridge;

(B) Excludes bulk shipping containers or outer wrappings that are not essential for the final retail delivery or sale to an end consumer for personal or household use; and

(C) Does not include a drug that is the subject of an application approved under subsection (c) or (j) of section 505 of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. § 355);

() "Hemp-derived cannabinoid product" means any intermediate or final product derived from hemp, other than industrial hemp, that:

(A) Contains cannabinoids in any form; and

(B) Is intended for human or animal use through any means of application or administration, such as inhalation, ingestion, or topical application;

() "Industrial hemp" means hemp:

(A) Grown for the use of the stalk of the plant, fiber produced from such a stalk, or any other non-cannabinoid derivative, mixture, preparation, or manufacture of such a stalk;

(B) Grown for the use of the whole grain, oil, cake, nut, hull, or any other non-cannabinoid compound, derivative, mixture, preparation, or manufacture of the seeds of such plant;

(C) Grown for purposes of producing microgreens or other edible hemp leaf products intended for human consumption that are derived from an immature hemp plant that is grown from seeds that do not exceed the threshold for total tetrahydrocannabinols concentration specified in subdivision (3)(C)(i);

(D) That is a plant that does not enter the stream of commerce and is intended to support hemp research at an institution of higher education, as defined in section 101 of the Higher Education Act of 1965 (20 U.S.C. § 1001), or an independent research institute; or

(E) Grown for the use of a viable seed of the plant produced solely for the production or manufacture of any material described in subdivisions () (A)-(D);

() "Intermediate hemp-derived cannabinoid product" means a hemp-derived cannabinoid product that:

(A) Is not yet in the final form or preparation marketed or intended to be used or consumed by a human or animal; or

(B) Is a powder, liquid, tablet, oil, or other product form which is intended or marketed to be mixed, dissolved, formulated, or otherwise added to or prepared with or into any other substance prior to administration or consumption;

SECTION 3. Tennessee Code Annotated, Section 39-15-407, is amended by deleting subdivision (2) and substituting:

(2) "Hemp" has the same meaning as defined in § 43-27-101;

SECTION 4. Tennessee Code Annotated, Section 39-17-1503, is amended by deleting subdivision (6) and substituting:

(6) "Hemp" has the same meaning as defined in § 43-27-101;

SECTION 5. This act takes effect July 1, 2026, the public welfare requiring it.